

Franciscus Dylan Rosario (IN PRO PER)
7624 Melody
ROHNERT PARK, CA 94928
P: 650.488.7510 / E: SOLTRINOX@GMAIL.COM

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE

APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR,
DOES 1-50

Defendants and Respondents

**DECLARATION OF FRANCISCUS DYLAN
ROSARIO
IN SUPPORT OF APPELLANT'S PETITION FOR
REHEARING,
MOTION FOR MANDATORY JUDICIAL NOTICE,
AND
REQUEST FOR LIMITED RECORD SETTLEMENT**
California Rules of Court, rules 8.54(a)(2), 8.155(c), 8.252(a)(2),
8.268, 8.500(c)(2);
Evidence Code sections 451, 452, 459
Exhibits A through C attached

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I, Franciscus Dylan Rosario, declare:

1. I am the Plaintiff and Appellant in propria persona in this appeal. I have personal knowledge of the facts stated in this declaration, and if called as a witness, I could and would competently testify thereto under oath.
2. I make this declaration pursuant to California Rules of Court, rules 8.54, subdivision (a)(2), 8.155, subdivision (c), and 8.252, subdivision (a)(2), and California Evidence Code sections 451, 452, and 459, in support of Appellant's Motion for Mandatory Judicial Notice and alternative request for limited record settlement, filed concurrently with Appellant's Petition for Rehearing.

**RELEVANCE OF MATTERS TO BE NOTICED (CRC
8.252(a)(2)(A))**

3. The matters of which judicial notice is sought are relevant to the issues raised in the concurrently filed Petition for Rehearing, as follows:

a. **Constitutional and Public Statutes:** Code of Civil Procedure section 647; Vehicle Code section 22107; Vehicle Code section 21804, subdivision (a); Code of Civil Procedure section 614; Vehicle Code section 360; Evidence Code section 140; Evidence Code section 310, subdivision (a); Evidence Code section 451, subdivision (a); Evidence Code section 669; California Constitution, article VI, section 13; Civil Code section 3513; Code of Civil Procedure section 607a; and Penal Code section 1138 are relevant because the Petition addresses (1) whether agreement or acquiescence in a trial court's response to a jury's request for the law forfeits review of a refusal to instruct in light of Code of Civil Procedure section 647 and *Cook*, and (2) whether the trial court's response to Jury Request Number 1 satisfied Code of Civil Procedure section 614. These provisions supply the text on which those issues turn. Vehicle Code section 22107 is the statute the jury asked about in Request Number 1; Vehicle Code section 21804, subdivision (a), is the second pro-

vision named in that request; Vehicle Code section 360 is the definition the court supplied in answering Request Number 2.

- b. **Decisional Authorities:** *Lund v. San Joaquin Valley Railroad* (2003) 31 Cal.4th 1; *Cook v. Los Angeles Railway Corp.* (1939) 13 Cal.2d 591; *Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450; *Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202; *Huffman v. Interstate Brands Corp.* (2004) 121 Cal.App.4th 679; *Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383; *People v. Saunders* (1993) 5 Cal.4th 580; *City of Ukiah v. Fones* (1966) 64 Cal.2d 104; *People v. Beardslee* (1991) 53 Cal.3d 68; *Davis v. Erickson* (1960) 53 Cal.2d 860; *Butigan v. Yellow Cab Co.* (1958) 49 Cal.2d 652; *Satterlee v. Orange Glenn School Dist.* (1947) 29 Cal.2d 581; *Alarid v. Vanier* (1958) 50 Cal.2d 617; *People v. Watson* (1956) 46 Cal.2d 818; *Soule v. General Motors Corp.* (1994) 8 Cal.4th 548; *Robinson v. Cable* (1961) 55 Cal.2d 425; *LeMons v. Regents of University of California* (1978) 21 Cal.3d 869; and *San Francisco Lumber Co. v. Bibb* (1903) 139 Cal. 325 are relevant because the Petition relies on them for the standards governing preservation of instructional claims, invited error, the trial court's duty when a deliberating jury asks a question,

the statutory measure of care for the tried turn, the binding effect of Supreme Court decisions, and prejudice. The argument on those standards is in the Petition, not in this declaration.

c. **Trial Court Records:** Defense Exhibit 500, Jury Request Forms Numbers 1 through 3 (Super. Ct. doc. 09577565), and certified Reporter's Transcript Volume 11 are relevant because they show on the face of the record: (1) that defendants designated the complaint pleading Vehicle Code sections 22107 and 21804, subdivision (a), as Defense Exhibit 500; (2) that the deliberating jurors asked in writing about Vehicle Code sections 22107 and 21804(a) and whether they could be instructed on those provisions; (3) that the trial court declined to instruct on them and stated as its ground that the statutes "were not part of the evidence"; and (4) that the jury returned a verdict finding defendant not negligent on a nine-to-three poll.

d. **Sequence shown by the exhibits:** The exhibits show, in this order, that the deliberating jury asked the court in writing for Vehicle Code sections 22107 and 21804(a) at 10:09 (Ex. B [Form 1, doc. 09577565, p. 2]); that the court's written response, bearing the notation 10:37 A.M., told the jury it "may not con-

sider" those sections and that the court would not instruct on them (Ex. B [Form 1]); that Form 2 records a court response at 10:46 A.M. (Ex. B [Form 2]); that Form 3 records time notations 2:19 PM and 2:40 p.m. (Ex. B [Form 3]); that the reported afternoon session convened on Request Number 3 (Ex. C, RT Vol. 11, p. 3, ll. 5-11); that the court stated on the record that the sections "were not part of the evidence" and that I had "waived that request" (Ex. C, p. 6, l. 22; p. 7, ll. 4-9); that the court later described my conduct as "acquiescence" (Ex. C, p. 10, l. 16); and that the verdict was returned and polled (Ex. C, p. 15, ll. 12-17; p. 16, ll. 4-7). Judicial notice of Exhibit C is requested as notice of what the transcript records was said. It is not requested as notice that a waiver or acquiescence occurred.

UNREPORTED CONFERENCE AND SUBSEQUENT RECORD DISPUTE

Paragraphs 4 through 9 describe an event that was not reported. I offer them for one purpose: to identify a disputed unreported event so that the Court can decide the conditional request under California Rules of Court, rule 8.155(c)(2), for limited settlement of the record so that a properly settled account of that event exists if the Court treats it as material. I do not request judicial notice of the truth of my recollection in paragraphs 4 through 7, and

the [Proposed] Order does not list it among the noticed matters. Judicial notice under Evidence Code section 452, subdivision (d), is requested only of the court records identified in paragraphs 15 through 17.

4. Before the trial court wrote and delivered its response to Jury Request Number 1, the court discussed the proposed response with the parties outside the presence of the court reporter. I recall asking the court during that unreported discussion to give the jury the statutory turning and yielding duties identified in Jury Request Number 1, including Vehicle Code sections 22107 and 21804, subdivision (a), because those provisions addressed the defendant's turning maneuver. I do not ask the Court to accept this recollection as a substitute for a settled statement.
5. The trial court indicated that it would not give those statutes because they were not part of the evidence and treated the decision whether to provide them as a matter within its discretion. I objected to withholding the turning and yielding law from the jury.
6. I did not ask the trial court to tell the jury that it could not consider the statutes, and I did not agree that the court should refuse to instruct the jury on those provisions. My later statement on the record that the jury could not consider material that was not part of the instructions (Ex. C,

RT Vol. 11, p. 4, ll. 8-10) concerned independent juror use of uninstructed material. It did not concern the separate clause stating that the court itself would not instruct on the statutes.

7. My reference on the record to Vehicle Code material as "immaterial" (Ex. C, RT Vol. 11, p. 3, ll. 12-22) concerned material allegedly obtained outside the instructions and the Vehicle Code definitions that the court added in response to Jury Request Number 2 concerning "vehicle" and "highway," including Vehicle Code section 360. I did not state that Vehicle Code sections 22107 and 21804, subdivision (a), the statutes named in Jury Request Number 1, were immaterial as governing law when supplied by the court through a jury instruction.
8. When the trial court later stated on the record that no objection had been made, I disputed that statement, invoked California Rules of Court, rule 8.137, and requested that the record be corrected or supplemented. (Ex. C, RT Vol. 11, p. 10, l. 23 to p. 11, l. 13.) I stated my objections on the record and asked either to reconstruct the record or to file my objection. (Ibid.) The court asked: "Well, your objection is noted. What's the correction?" (Id., p. 11, l. 14.) I answered that question on the record. (Id., p. 11, ll. 14-24.) No properly settled account of the unreported

discussion was prepared or certified.

9. The trial court noted and overruled my objections. (Ex. C, RT Vol. 11, p. 11, l. 28 to p. 12, l. 4.) The transcript therefore contains the trial court's characterization of the unreported discussion and my contemporaneous dispute of that characterization, but no properly settled account of what occurred. If this Court relies on the trial court's characterization of the unreported discussion to find agreement, waiver, forfeiture, or invited error, I request that the Court direct the superior court under California Rules of Court, rule 8.155(c)(2), to settle the disputed unreported proceeding so that a properly settled account of it exists.

**WHETHER PRESENTED TO THE TRIAL COURT
(CRC 8.252(a)(2)(B))**

10. **Trial Court Records:** Defense Exhibit 500 is the complaint that defendants designated as a defense trial exhibit; its admission status and any limitation are as shown in the certified trial record. Jury Request Forms Numbers 1 through 3 were presented to the trial court by the jury during deliberations on April 23, 2025. Certified Reporter's Transcript Volume 11 is the official verbatim record of the reported proceedings conducted before the Honorable Garrett L. Wong on April 23, 2025.

11. **Public Statutes and Decisional Law:** These matters

are law of which the trial court was required to take judicial notice under Evidence Code section 451, subdivision (a). Vehicle Code section 22107 was presented to the trial court through Jury Request Form Number 1, which asked whether the jury should consider that section and Vehicle Code section 21804, subdivision (a), and whether it could be instructed on them; the trial court's written response named both sections and declined to instruct on them. (Ex. B [Form 1]; Ex. C, RT Vol. 11, p. 6, ll. 23-27.) Vehicle Code section 360 appears in the court's response to Jury Request Number 2. (Ex. B [Form 2]; Ex. C, RT Vol. 11, p. 7, ll. 16-26.) Under Evidence Code section 459, subdivision (a)(2), the reviewing court "shall take judicial notice of ... each matter that the trial court was required to notice under Section 451."

STATUTORY BASIS FOR JUDICIAL NOTICE (CRC 8.252(a)(2)(C))

12. Under California Evidence Code section 451, subdivision (a), judicial notice of the public statutes and decisional law of this state specified in the Motion is mandatory, and under section 459, subdivision (a), the reviewing court shall take judicial notice of each matter the trial court was required to notice under section 451.
13. Under California Evidence Code section 452, subdivision (d), and the last sentence of section 459, subdivision (a),

this Court may take judicial notice of the records of any court of this state, including Defense Exhibit 500, Jury Request Forms Numbers 1 through 3 (Super. Ct. doc. 09577565), and certified Reporter's Transcript Volume 11 from San Francisco Superior Court case number CGC-21-594102.

TIMING OF PROCEEDINGS (CRC 8.252(a)(2)(D))

14. None of the matters to be noticed relate to proceedings occurring after the judgment that is the subject of this appeal. All trial court records arose during the trial proceedings culminating in the judgment entered in San Francisco Superior Court case number CGC-21-594102.

AUTHENTICATION OF EXHIBITS

15. **Exhibit A:** Attached hereto as Exhibit A is a true and correct copy of the complaint that defendants designated as Defense Exhibit 500 in San Francisco Superior Court case number CGC-21-594102. Defense Exhibit 500 is Plaintiff's Complaint for Personal Injuries, which pleads and cites California Vehicle Code section 22107 and section 21804, subdivision (a).
16. **Exhibit B:** Attached hereto as Exhibit B is a true and correct copy of Jury Request Forms Numbers 1 through 3, Super. Ct. doc. 09577565, pages 2 through 4, submitted by the deliberating jury on April 23, 2025, in Department

504 of the San Francisco Superior Court. Form 1 (doc. 09577565, p. 2) bears the time notation "10:09" for the request and "10:37 A.M." for the court's written response. The Form 1 request asks: "In considering the question of whether the defendant was negligent should we consider the provisions of Vehicle Code Sections 22107 and 21804(a). If so could we be instructed on those provisions?" The Form 1 court response reads: "You may not consider Vehicle Code sections 22107 and/or 21804(a) nor will the court instruct the jury on those provisions." Form 2 (doc. 09577565, p. 3) bears the time notation "10:09" for the request and "10:46 A.M." for the court's written response defining "vehicle" and "highway." Form 3 (doc. 09577565, p. 4) bears the time notation "2:19 PM" for the request and "2:40 p.m." for the court's written response. The reported afternoon session convened on Request Number 3. (Ex. C, RT Vol. 11, p. 3, ll. 5-11.)

17. **Exhibit C:** Attached hereto as Exhibit C is a true and correct copy of certified Reporter's Transcript Volume 11, pages 1 through 16, dated April 23, 2025, transcribing the reported proceedings of that date, including the trial court's recital of its response to Jury Request Number 1 (p. 6, ll. 23-27), its stated ground at page 7, lines 4 to 9 that the Vehicle Code sections "were not part of the evidence" and that jurors were "not permitted to consider that as evidence

in the case, period," the rule 8.137 exchange (p. 10, l. 23 to p. 11, l. 13; p. 11, l. 28 to p. 12, l. 4), and the return and polling of the verdict (p. 15, ll. 12-17; p. 16, ll. 4-7).

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct, and that this declaration was executed on September 11, 2026, at San Francisco, California.



/s/

Franciscus Dylan Rosario
Plaintiff and Appellant in Pro Per
7624 Melody
ROHNERT PARK, CA 94928
P: 650.488.7510 / E: SOLTRINOX@GMAIL.COM

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT A

Copy of the complaint that defendants designated as Defense
Exhibit 500

Notice basis: Evidence Code, section 452, subdivision (d); California Rules of Court, rule 8.252.

Source: Clerk's Transcript volume 1, page 44, CGC-21-594102 / A173827. This attachment is a copy of that record page. It is not stamped as admitted or as an unlimited admission.

SHORT TITLE: Rosario v. Abdelhalim, et al.

CASE NUMBER:

Second
(number)**CAUSE OF ACTION—General Negligence**

Page 5

ATTACHMENT TO ☒ Complaint ☐ Cross - Complaint

(Use a separate cause of action form for each cause of action.)

GN-1. Plaintiff (name): Franciscus Dylan Rosario

alleges that defendant (name): Subhi Abdelhalim, individually, and dba Sonoma Liquor

☒ Does 1 to 20

was the legal (proximate) cause of damages to plaintiff. By the following acts or omissions to act, defendant negligently caused the damage to plaintiff

on (date): February 4, 2021

at (place): Intersection of 5th Street and Tehama Street, San Francisco County, California

(description of reasons for liability):

1. Plaintiff re-alleges all allegations set forth prior and incorporates them herein by reference as though set forth herein.

2. Plaintiff Franciscus Dylan Rosario was riding a scooter northbound on 5th St. in the City/County of San Francisco, State of California. Defendant Abdelhalim and/or DOES 1-20 were traveling southbound 5th St. and attempted a right turn onto Tehama St., directly into the path of Plaintiff, striking Plaintiff and knocking him to the ground. Plaintiff was able to roll from the path of the box truck to avoid being run over by the vehicle. As a result, Plaintiff suffered damages requiring medical attention. Upon information and belief, Defendant Abdelhalim and/or DOES 1-20 did not see Plaintiff before the collision.

3. At the time of the subject incident, Defendant Abdelhalim and DOES 1-20 were driving within the course and scope of their employment with Defendant Sonoma Liquor, which is vicariously liable for the conduct of its employees that caused harm to Plaintiff Rosario.

4. Defendant Abdelhalim and/or DOES 1-20, in the course and scope of their employment with Sonoma Liquor, violated, including but not limited to, California Vehicle Code sections 22107 and 21804(a), which places a legal duty on the driver of a vehicle to yield the right-of-way to all traffic and exercise due care for the safety of anyone. Defendant Abdelhalim and/or DOES 1-20 failed to exercise due care for the safety of Plaintiff Rosario who was on a scooter at all relevant times, violating California Vehicle Code sections 22107 and 21804(a).

5. As a direct and proximate result of Defendant Abdelhalim and or DOES 1-20's violation of sections 22107 and 21804(a), Plaintiff suffered special and general damages in an amount to be determined at trial.

6. Plaintiff's injuries resulted from an incident of the kind that sections 22107 and 21804(a) were designed and adopted to prevent.

7. Plaintiff belongs to the class of persons that sections 22107 and 21804(a) were designed to protect.

8. Plaintiff reserves the right to identify more statutes, regulations, and/or ordinances that Defendants may have violated.

IN THE COURT OF APPEAL OF THE STATE OF
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DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT B

Jury Request Forms Numbers 1 through 3 (Super. Ct. doc.
09577565, pages 2 through 4)

Notice basis: Evidence Code, section 452, subdivision (d); California Rules of Court, rule 8.252.

Source: Official Superior Court document 09577565, pages 2 through 4.

SUPERIOR COURT OF CALIFORNIA
County of San Francisco

Honorable GARRETT L. WONG, Judge Presiding
Department 504

FRANCISCUS DYLAN ROSARIO

PLAINTIFF

VS.

SUBHI ABDELHALIM et al

DEFENDANT

Case Number: CGC-21-594102

JURY REQUEST FORM # 1

WE, the Jury in the above-entitled action, request the following:

In considering the question of whether the defendant was negligent should we consider the provisions of Vehicle Code Sections 22107 and 21804(a). If so could we be instructed on those provisions?

This 23rd day of April, 2025

Time: 10:09

Presiding Juror

Douglas M Young

COURT Response:

You may not consider Vehicle Code sections 22107 and/or 21804(a) nor will the court instruct the jury on those provisions.

This 23rd day of April, 2025

Time: 10:37 A.M.

Hon. Garrett L. Wong

Judge of the Superior Court

SUPERIOR COURT OF CALIFORNIA
County of San Francisco

Honorable GARRETT L. WONG, Judge Presiding
Department 504

FRANCISCUS DYLAN ROSARIO

PLAINTIFF

VS.

SUBHI ABDELHALIM et al

DEFENDANT

Case Number: CGC-21-594102

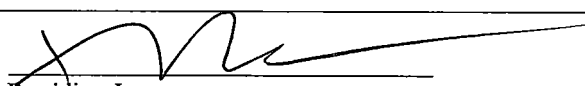
JURY REQUEST FORM # 2

WE, the Jury in the above-entitled action, request the following:

Officer Fernandez testified that a scooter is a vehicle if it is being ridden, but that one pushing a scooter is considered to be a pedestrian. Is there a relevant legal definition of "vehicle" that we should consider in assessing this testimony?

This 23rd day of April, 2025

Time: 10:09


Presiding Juror

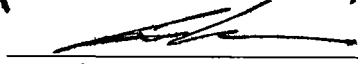
Douglas M. Young

COURT Response:

Vehicle Code section provides: "A 'vehicle' is a device by which any person or property may be propelled, moved or drawn upon a highway, excepting a device moved exclusively by human power or used exclusively upon stationary rails or tracks." Vehicle Code section 360 defines "highway" as "a way or place of whatever nature, publicly maintained

This 23 day of April, 2025

Time: 10:46 A.M.


Hon. Garrett L. Wong
Judge of the Superior Court

and open to the use of the public for purposes of vehicular travel. Highway includes street."

SUPERIOR COURT OF CALIFORNIA
County of San Francisco

Honorable GARRETT L. WONG, Judge Presiding
Department 504

FRANCISCUS DYLAN ROSARIO

PLAINTIFF

VS.

SUBHI ABDELHALIM et al

DEFENDANT

Case Number: CGC-21-594102

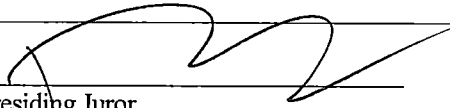
JURY REQUEST FORM # 3

WE, the Jury in the above-entitled action, request the following:

If our finding is yes to question (1) in the
verdict form and our finding is no to question
(2) in the ~~jury~~ verdict form, what are the
implications of that for the defendant

This 23rd day of April, 2025

Time: 2:14 PM


Presiding Juror

COURT Response:

Please follow the instructions after you
answer yes or no to Question 2.

This 23rd day of April, 2025

Time: 2:40 p.m.


Hon. Garrett L. Wong
Judge of the Superior Court

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT C

Certified Reporter's Transcript Volume 11, reporter pages 1
through 16 (April 23, 2025)

Notice basis: Evidence Code, section 452, subdivision (d); California Rules of Court, rule 8.252.

Source: Certified Day 11 reporter's transcript, reporter pages 1 through 16 (PDF sheets 2 through 17 of the certified volume). Already on file in this appeal; copy attached.

1 IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
2 IN AND FOR THE COUNTY OF SAN FRANCISCO - UNLIMITED
3 BEFORE THE HONORABLE GARRETT L. WONG
4 DEPARTMENT 504

5 FRANCISCUS DYLAN ROSARIO,

6 Plaintiff,

7 vs.

Case No. CGC-21-594102

8 SUBHI ABDELHALIM;
9 INDIVIDUALLY, AND DBA
10 SONOMA LIQUOR, DOES
11 1 TO 50,

12 Defendants.

13 REPORTER'S TRANSCRIPT

14 WEDNESDAY, APRIL 23, 2025

15 PAGES 1 - 20

16 Location: San Francisco Superior Court
17 400 McAllister St., Dept 504
18 San Francisco, California 94102

19 APPEARANCES

20 For the Plaintiff: FRANCISCUS DYLAN ROSARIO
21 7624 Melody Drive
22 Rohnert Park, California, 94928
23 IN PRO PER

24 For the Defendants: PHILLIPS, SPALLAS & ANGSTADT, LLP
25 560 Mission Street, Suite 1010
26 San Francisco, California 94105
27 BY: PRIYA NAVARATNASINGHAM, Esq.
28 BY: ALBERTO REYNA, Esq.

Reported by: Dennis M. Souza, CSR# 3893

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SESSIONS

PAGE

WEDNESDAY, APRIL 23, 2025

AFTERNOON SESSION

3

VERDICT READ

1 April 23, 2025 San Francisco, California

2 PROCEEDINGS

3 THE BAILIFF: Come to order. Department 504
4 is now in session.

5 THE COURT: We are on the record. The record
6 should reflect that the parties are present along with
7 Counsel, and the Jury has issued a question to the
8 Court.

9 It is Jury request number three.

10 But before we deal with that, there is also a
11 motion for a mistrial?

12 MR. ROSARIO: Yes, Your Honor. I am
13 requesting a mistrial on the grounds of Juror
14 misconduct.

15 I have reason to believe that one or more of
16 the jurors accessed or relied on outside information
17 -- specifically vehicle codes, which is immaterial --
18 which was not introduced into evidence.

19 This undermines my rights of a fair trial and
20 violates the Court's instruction that the Jury must
21 decide the case solely on the evidence presented in
22 Court. I respectfully move for a mistrial.

23 MS. NAVARATNASINGHAM: Your Honor, we oppose
24 any request for mistrial.

25 There is no evidence whatsoever at this point
26 that the Jury even considered that information and the
27 Court instructed them not to consider that
28 information.

1 MR. ROSARIO: The Court also, through its own
2 admission, clarified something to the Jury by
3 submitting a actual Vehicle Code, which was not
4 introduced during the evidence, and by that cause
5 alone, Your Honor, you had inserted information into
6 the Jury which then -- by providing them information
7 that was not available in the evidence itself.

8 I do agree with the first one, the response
9 to number one: You may not consider it because it is
10 not part of the instructions.

11 But when you added that into the second one,
12 it caused this, because the Jury had to make the
13 decision based upon the available evidence that was
14 there.

15 THE COURT: I see. So you don't have an
16 objection to the instruction given in response to Jury
17 request number one?

18 MR. ROSARIO: No. I have objection to the
19 fact they were accessing or requesting all of them
20 anyways. But in number one, you know, I understand
21 what's going on here.

22 They should not have been accessing external
23 information or requesting Vehicle Code sections that
24 were not presented during the trial in view of the
25 evidence.

26 The second one, they asked something that
27 they did not have. And, again, that is information
28 that was not presented in the evidence and suddenly

1 new evidence or new information has been inserted by
2 yourself.

3 So those two clauses alone, there was no
4 request for a code here. You provided a code.

5 Then the second one, they asked for a code
6 which was outside -- which was extraneous information
7 that was not introduced in the evidence.

8 That is grounds for a mistrial.

9 MS. NAVARATNASINGHAM: Your Honor,
10 Officer Fernandez -- the question specifically was
11 asked to Officer Fernandez, who testified -- excuse
12 me -- his testimony about the term of a vehicle. So
13 to provide that clarification of a legal definition
14 from the Vehicle Code, we think it is appropriate.

15 As to the other sections that was simply
16 asking for another Jury instruction and the Court
17 instructed them not to consider that, and there is no
18 evidence there has been any prejudice to Plaintiff
19 because of that.

20 MR. ROSARIO: Absolutely that is prejudice.
21 The officer and the Defense had an opportunity to
22 enter that Vehicle Code as well as the definition of a
23 vehicle in their evidence. They did not do that.
24 Inserting that information into the Jury after the
25 fact, after they have gone into the sealed room back
26 there, essentially, is extraneous influence over the
27 Jury and their knowledge about this case.

28 Secondly, them asking for that information in

1 question number one means that either somebody has
2 accessed external information specifically about
3 vehicle codes in order to clarify.

4 The Defense should have also -- if they
5 wanted to have those codes in there, they should have
6 provided them to the Jury. They did not.

7 Both of those facts prove there is extraneous
8 Juror misconduct of accessing external information
9 that severely prejudices my case.

10 THE COURT: All right. Is the matter
11 submitted?

12 MR. ROSARIO: Yeah. Thank you, Your Honor.

13 MS. NAVARATNASINGHAM: Yes.

14 THE COURT: All right. First, the motion for
15 a mistrial is denied.

16 With regard to Jury request form number one,
17 first of all, you did not object to the language that
18 was submitted to the Jury.

19 The Court presented that response in Jury
20 request number one to each party before delivering it
21 to the Jury.

22 You've waived that request, sir.

23 In that matter, with regard to Jury request
24 form number one, the Court answered: You may not
25 consider Vehicle Code Sections 22107 and or 21804
26 subdivision A, nor will the Court instruct the Jury on
27 those provisions.

28 That is a sufficient instruction for the Jury

1 to abide by.

2 There has been no evidence that the Jury has
3 considered that as a part of its deliberations.

4 Further, I will point out -- I don't think I
5 needed to point this out -- but neither Vehicle Codes
6 Section 22107 nor 21804 subdivision A were part of the
7 evidence.

8 They simply are not permitted to consider
9 that as evidence in the case, period.

10 Now turning to Jury request form number two,
11 the relevant request here from the Jury, in pertinent
12 part, "Is there a relevant legal definition of
13 'vehicle?', close quote" that we should consider in
14 assessing this testimony?"

15 Question.

16 Answer: Vehicle Code Section provides,
17 quote, "a vehicle is a device by which any person or
18 property may be propelled, moved or drawn upon a
19 highway excepting a device moved exclusively by human
20 power or used exclusively upon stationery rails or
21 tracks."

22 Vehicle Code Section 360 defines "highway"
23 as: "A way or place of whatever nature publicly
24 maintained and open to the use of the public for
25 purposes of vehicle travel. 'Highway' includes
26 street," close quote.

27 The Court -- even if this was something that
28 was gratuitous on the part of the Court, the Court is

1 defining something that is the word "vehicle" for the
2 purpose of the jury's use in this matter.

3 I find no harm nor prejudice against either
4 party in this case.

5 It is simply a neutral definition coming from
6 the Vehicle Code which defines vehicle and highway.

7 MR. ROSARIO: Inaccurate, Your Honor. You
8 enhanced it by adding that highways also indicates
9 street.

10 That is not in the actual black-letter law.
11 You enhanced the statement and you sent that back.

12 That is a direct influence over the Jury.

13 THE COURT: Sir, do you want to take a look
14 at this code section?

15 It says, "Highway includes street", close
16 quote.

17 MR. ROSARIO: Understood.

18 THE COURT: The answer to Jury request number
19 three, which provides, in pertinent part, "If our
20 finding is yes to question one in the verdict form and
21 our finding is no to question number two in the
22 verdict form, what are the implications of that for
23 the Defendant?" The answer is: Please follow the
24 instruction that follows question two.

25 I don't think I need to reiterate that
26 question.

27 "Please follow the instructions that follow
28 the yes-or-no query after question two."

1 That's all I need to put.
2 I am not going to indicate what the
3 implications are or anything else about their
4 decision.
5 It's frankly not relevant or pertinent to
6 what they have to decide in this matter.
7 The Court's going to complete that, and if
8 you have an objection, you can make that now, sir.
9 MR. ROSARIO: Of course we have an objection.
10 Not on the other clarification as to the instructions
11 in the verdict form as they were written by the
12 Defense that I agreed to.
13 I would like to bring to the Court's
14 attention on the other matter, and make sure that is
15 preserved on the record, that we asked for the
16 mistrial due to extemporaneous information being
17 accessed by the Jury.
18 THE COURT: Sir, it is denied.
19 MR. ROSARIO: I understand.
20 THE COURT: The language states, in pertinent
21 part: "Please follow the instructions after you
22 answer yes or no to question two.
23 You will have a copy of that. The clerk will
24 hand you a copy of each question -- the response to
25 question three.
26 (Short recess).
27 THE BAILIFF: Department 504 is now in
28 session.

1 THE COURT: We are back on the record. And
2 the record should reflect that we have all parties
3 present along with Counsel.

4 And I have been informed by my courtroom
5 clerk that Mr. Rosario seeks to have his objections as
6 to Jury request number -- form number one and number
7 two placed on the record.

8 MR. ROSARIO: Yes.

9 THE COURT: The Court will indicate even
10 though -- well, I will simply point out there was no
11 objection raised at the time that we completed --

12 MR. ROSARIO: That wasn't our understanding.

13 THE COURT: Excuse me, sir.

14 That there was no objection entered as to the
15 answer to Jury request number one or to Jury request
16 number two; that, in fact, there was a acquiescence by
17 you, Mr. Rosario, based on the fact that some of this,
18 as you put it, was somewhat common knowledge to
19 everyone.

20 So you may certainly put your objection down
21 as to each of these responses to the Jury for the
22 record. Go ahead.

23 MR. ROSARIO: Right. So pursuant to
24 California Rules of Court 8.137, the Plaintiff objects
25 to Court statement that no objection was made to the
26 Jury instructions.

27 Given that outside the presence of the
28 Court Reporter, Plaintiff did object to any language

1 or materials sent back because the information was
2 already common knowledge, was unnecessary to be
3 defined, specifically also the one that was defined by
4 yourself to the Jury themselves.

5 The citation on -- more specifically, the
6 citation on what constitutes a vehicle, I did object
7 to that, and that is inaccurate also.

8 So -- but the record does not reflect the
9 Reporter's absence.

10 So Plaintiff requests the record be corrected
11 or supplemented pursuant to the Code of 8.137.

12 I would like to either reconstruct the record
13 or we file my objection for that.

14 THE COURT: Well, your objection is noted.
15 What's the correction?

16 MR. ROSARIO: The correction is that I
17 objected to any of the material going back, the codes,
18 because they were common knowledge; it wasn't
19 necessary for anything to be sent back to the Jury,
20 anything, any kind of clarification of vehicles,
21 anything like that. It was unnecessary.

22 I stated that. It was all common knowledge.

23 THE COURT: Very well. Your objection's
24 noted.

25 Anything further?

26 MS. NAVARATNASINGHAM: I have nothing to add,
27 Your Honor, to what Your Honor said.

28 THE COURT: All right. Your objections are

1 noted. They are overruled and the Court believes that
2 this is within its discretion to issue these responses
3 in order to clarify for the Jury some issues that they
4 have raised by way of their requests.

5 MR. ROSARIO: So at this point, we are
6 reconsidering on motion -- or on the questions in
7 number one, based upon the fact that there is evidence
8 of external extemporaneous access. This is a second
9 chance here.

10 Again, we are requesting for the mistrial,
11 stating that we feel there is an objection to that.
12 And as of our time right now, we are again
13 reconsidering for the objection that the
14 extemporaneous information about vehicle codes shows
15 that there is evidence and prejudice against the
16 Plaintiff's position based upon external research.

17 We are, again, objecting. We feel that there
18 is absolutely one hundred percent evidence of
19 extemporaneous Juror misconduct on the record, on the
20 record this time.

21 THE COURT: Very well. It is overruled.
22 Anything further?

23 MR. ROSARIO: I guess that is it.
24 Does that settle the record?

25 THE COURT: I think so. Anything else?

26 MR. ROSARIO: Yeah. We believe that --

27 THE COURT: No, sir. You have already
28 provided the Court and submitted your arguments to

1 clarify what you believe is an objection to the
2 Court's response to Jury request form number one and
3 Jury request form number two.

4 That has been submitted. The Court has
5 considered it. And the Court has overruled that --

6 MR. ROSARIO: Right.

7 THE COURT: -- overruled that objection. So
8 you have nothing left, unless there is some other
9 issue you wish the Court to take up.

10 MR. ROSARIO: We find this highly irregular
11 in the proceedings under CCP 657 and we believe there
12 is an error.

13 THE COURT: 657, what does it state?

14 MR. ROSARIO: Irregularities of the
15 proceedings.

16 THE COURT: What are the irregularities, sir?

17 MR. ROSARIO: The jurors -- I just went over
18 that, the jurors having access to extemporaneous
19 information, first off; second off, you sending back
20 enhancements to a testimony that was not in, and any
21 of the enhancements or any of the evidence would be
22 used in their assessment.

23 THE COURT: Sir, CCP Section 657 are grounds
24 for a new trial.

25 You are premature.

26 MR. ROSARIO: I asked for a mistrial,
27 Your Honor, on these grounds, that there has been
28 information accessed by the Jury.

1 So that is what we are saying. There is a
2 irregularity of this.

3 THE COURT: That is denied.

4 MR. ROSARIO: Okay. I understand, but -- I
5 don't agree with it, but --

6 THE COURT: Very well. We are adjourned.
7 (Short recess).

8 THE COURT: All right. We have a verdict.
9 The record should indicate the jurors are not present.
10 We will have the jurors brought into the
11 courtroom now. The record should reflect that all
12 parties are present, including Counsel.

13 (Whereupon, the Jury entered the courtroom).

14 THE COURT: Very well. Please be seated.
15 Thank you. The record should indicate that we have
16 the 12 deliberating jurors present in the Court and
17 all parties, including Counsel.

18 The record should indicate now that the
19 Bailiff has informed me that the Jury has reached a
20 verdict.

21 Will the Presiding Juror please raise his or
22 her hand? Juror No. 12.

23 A. Yes.

24 Q. Has the Jury reached a verdict, Juror No. 12?

25 A. The Jury has reached a verdict, Your Honor.

26 Q. Thank you, sir.

27 THE COURT: Mr. Bailiff, please retrieve the
28 verdict form.

1 Very well. The verdict appears to be
2 correctly dated and signed.

3 Madam Clerk, would you read the verdict into
4 the record, please.

5 THE CLERK: Superior Court of California in
6 and for the County of San Francisco, Unlimited
7 Jurisdiction.

8 Franciscus Dylan Rosario, Plaintiff versus
9 Subhi Abdelhalim, individually, and dba Sonoma Liquor,
10 Does 1 to 50, Defendants; Case No. CGC-21-594102.
11 Verdict.

12 We answered the questions submitted to us as
13 follows:

14 One: Was Subhi Abdelhalim negligent?
15 Answer: No.

16 Signed and dated April 23, 2025 by the
17 Presiding Juror.

18 THE COURT: Very well.

19 Mr. Rosario, would you like to poll the Jury?

20 MR. ROSARIO: Excuse me?

21 THE COURT: Do you wish to poll the Jury?

22 MR. ROSARIO: How does that work?

23 THE COURT: Well, we will ask the 12 jurors
24 whether that is the verdict that they have agreed upon
25 as read by the clerk.

26 Do you wish to have that done?

27 MR. ROSARIO: Yeah, of course.

28 THE COURT: Very well, Madam Clerk.

1 THE CLERK: For question one: Was
2 Subhi Abdelhalim negligent?
3 Answer: No.
4 If this was your true and correct verdict as
5 you answered, please raise your hand.
6 Let the record reflect that nine jurors have
7 raised their hand.
8 THE COURT: Very well.
9 All right. Do the parties waive reading of
10 the verdict as recorded? Mr. Rosario?
11 MR. ROSARIO: Excuse me?
12 THE COURT: I am going to have the clerk
13 record the verdict now.
14 MR. ROSARIO: Okay.
15 THE COURT: Do you waive reading of the
16 verdict as recorded; in other words, do we have to
17 read the verdict again?
18 MR. ROSARIO: For the record, let's go ahead
19 and please do that.
20 THE COURT: Very well.
21 MR. ROSARIO: Yes.
22 THE CLERK: From the top down?
23 THE COURT: Yes.
24 THE CLERK: Superior Court of California in
25 and for the County of San Francisco Unlimited
26 Jurisdiction, Franciscus Dylan Rosario, Plaintiff
27 versus Subhi Abdelhalim, individually, and dba Sonoma
28 Liquor, Does 1 through 50, Defendants. Case No.